

Client wants the Lawyer to file number of frivolous cases against the opposite party.

ISSUE

Whether the lawyer is bound to follow the advice of the client?

Whether the lawyer should withdraw from the case?

RULE

Rule 3.1-2 Commentary 9 of Model Code of Professional Conduct – Competence

Rule 3.2-2 Commentary 3 –Honesty and candour

Rule 3.2-4 –Encouraging Compromise or Settlement

Rule 3.2-5 –Threatening Criminal or Regulatory proceedings

Rule 3.7-7 –Dishonesty, fraud by Client or others

Rule 5.1-1 –Advocacy

Rule 7.2-1 –Courtesy and Good Faith

Rule 7.2-2 –

APPLICATION

When acting as an advocate, a lawyer must represent the client resolutely and honourably within the limits of the law, while treating the tribunal with candour, fairness, courtesy and respect

A lawyer must be courteous and civil and act in good faith with all persons with whom the lawyer has dealings in the course of his or her practice.

A Lawyer has also a duty towards the Public, Courts and administration of Justice as a whole which has a priority on the duty towards the client.

A lawyer must be firm with a client. However, the Lawyer should not be rude to the client. In communicating with the client, the lawyer may disagree with the client's perspective, or may have concerns about the client's position on a matter, and may give advice that will not please the client. This may legitimately require firm and animated discussion with the client.

A lawyer must advise and encourage a client to compromise or settle a dispute whenever it is possible to do so on a reasonable basis and must discourage the client from commencing or continuing useless legal proceedings.

A lawyer must avoid sharp practice and must not take advantage of or act without fair warning upon slips, irregularities or mistakes on the part of other lawyers not going to the merits or involving the sacrifice of a client's rights.

The lawyer should advise the client to not to file any frivolous cases against the opposite party with malafide intention or with the view to get any financial benefit/ gain from the opposite party. The lawyer should never encourage the client for the same.

A lawyer should not provide unreasonable or over-confident assurances to the client, especially when the lawyer's employment or retainer may depend upon advising in a particular way.

A lawyer must withdraw if a client persists in instructing the lawyer to act contrary to professional ethics.

CONCLUSION

In view of the above mentioned rules,

If the client resists in accepting the instructions of the Lawyer, the lawyer should withdraw from the case. However the lawyer must observe the rules of withdrawal from representation under Rule 3.7 of the Rules of Professional Misconduct.

Apart from the above, the lawyer may also report the said matter to the Law Society to take further guidance in the matter.